CMA Board Approval: May 4, 2026
Effective date: May 5, 2026

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COOLFONT MOUNTAINSIDE ASSOCIATION MAILBOX USE POLICY RESOLUTION POLICY RESOLUTION 2026-01

Authority

WHEREAS, CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents; and

WHEREAS, CMA Declaration of Covenants and Restrictions, Article IV, Section 2, Paragraph (c) and (d) provide for suspension of the enjoyment of rights of any Member for any period during which assessments are unpaid and for infraction of published rules and regulations and to charge reasonable other fees for the use of the Common Properties; and

WHEREAS, CMA Declaration of Covenants and Restrictions, Article V, and Bylaws, Articles 3 and 8 create an assessment obligation for owners, empower the Board to make assessments for the common expenses of the Association, and to establish guidelines for enforcing the assessment covenant against owners by any lawful means; and

WHEREAS, the CMA Bylaws, Article 5, Section 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any member, guest, or tenant violates such the Board may suspend the rights of any such person and the responsible member; and

VALERIE OREGON
56 MOUNTAINSIDE LANE
BERKELEY SPRINGS WV 25411

WHEREAS, CMA is a private community and not serviced by standard United States Postal Service mail and parcel delivery services;

NOW, THEREFORE, IT IS HEREBY RESOLVED the Board adopts the following CMA Mailbox Use Policy:

Overview

Due to CMA's rural setting and private access, the United States Postal Service (USPS) does not provide postal delivery to CMA houses. Instead, USPS agrees to deliver mail and parcels addressed to CMA addresses to a centralized mailbox facility – the CMA Mail Center – located

near the entrance of the community, adjacent to the sports courts, barn and pool. CMA provides the CMA Mail Center as a convenience for owners. CMA bears the initial costs for installation and maintenance of the mailbox units. Owners pay a one-time fee to help offset those costs. CMA has a close working relationship with the local USPS office that delivers CMA mail and parcels six days a week. Additionally:

A. Owners are not required to have a CMA mailbox, but USPS will not deliver mail or parcels to a CMA address that does not have an assigned mailbox.
B. Package delivery via ground carriers such as Fedex, UPS, DHL, or Amazon truck do not require a CMA mailbox. Those carriers normally deliver directly to houses in the community. However, if those services transfer parcels to USPS for "last mile" service, they can only be delivered to owners with a CMA mailbox.
C. CMA mailboxes are considered part of the USPS delivery system. Tampering with or destroying a mailbox is a federal crime punishable by up to $250,000 in fines and three years in prison. Mailboxes are considered federal property under protection, regardless of private ownership.

Mailboxes

Assignment

A. Owners may request assignment of a mailbox for their CMA property by contacting the CMA Board.
B. A CMA property may have only one CMA mailbox per street address.
C. The Board Secretary or Treasurer will maintain the records of assigned mailboxes within the membership roster.
D. There is a one-time charge for the mailbox when assigned. See Mailbox Fees, below. The mailbox "stays" with the property, even if the house is sold to new owners. Sellers should provide new owners with the keys at closing.
E. The Board Secretary, Treasurer, or their designated representative will notify the USPS mail carrier when a new box is assigned or when there is a new owner. Currently, this is done by text message to the carrier with the owners' names, street address and mailbox number assignment.
F. CMA will affix a street address label on the exterior of the mailbox.
G. USPS will affix a customer label on the interior of the mailbox.

Keys

A. Owners are provided with keys to the mailbox when it is assigned.
B. CMA does not maintain copies of mailbox keys.
C. Lost keys cannot be replaced, instead, the lock on the mailbox must be changed and new keys provided. There is a fee to replace the lock.
D. Owners are allowed to make copies of their mailbox keys for personal use.

Lock Replacement

A. Locks will be replaced by CMA staff, when requested by the mailbox owner. Owners should contact the CMA Board or Site Manager for service.
B. Owners should allow up to three (3) days for the lock replacement.
C. There is a fee to change the lock, which covers the cost of the lock and labor to replace it. Owners will be billed for the lock replacement cost.(2026 cost: $50 per replacement).
D. Keys for the new lock will be provided to the owner.
E. Owners can contact the local USPS office and ask them to hold mail at the local office until the lock replacement is completed.

Mailbox Use

Addressing Mail

A. All USPS mail sent to a Coolfont home must be addressed to a CMA street address that has a CMA-assigned mailbox. CMA Lot numbers or CMA Mailbox numbers are not acceptable – USPS will not deliver mail without a street address.

   Examples:
   123 Bobcat Drive, Berkeley Springs, WV 25411
   55 Mountainside Court, Berkeley Springs, WV 25411

B. The property Lot number may be included but should follow the street address.

   Examples:
   123 Bobcat Drive, Lot K-21, Berkeley Springs, WV 25411
   55 Mountainside Court, Lot N-14, Berkeley Springs, WV 25411

C. Addresses must clearly note the road type: Drive, Court, Lane, Loop, Terrace, etc. Particularly for addresses on Mountainside XXXX or Bobcat XXXX.
D. Per USPS, Mail or parcels addressed to a CMA street address without a CMA assigned mailbox will not be delivered. Owners should contact the local post office for disposition.
E. Per USPS, Mail or parcels addressed to a CMA street address with a CMA assigned mailbox must be addressed to the current box holder (names). Mail not addressed to a current box holder will be returned to the sender. Owners can update box holder information by contacting the local post office.
F. Questions should be directed to the Berkeley Springs Post Office at 304-258-1424.

Access

A. Owners are provided with keys to their assigned mailbox. Any attempt to open the box without the keys will be considered tampering and may violate federal law.
B. Owners cannot add or remove address labels or other labels on the outside or inside of the CMA mailbox.

C. Owners should regularly remove their mail from their box as space is limited. Parcels placed in parcel lockers should be picked up as soon as possible as the number of lockers is limited. The mail carrier will leave parcels for as long as possible; however, parcels not picked up timely may be Returned to Sender if the lockers are needed for other owners.
D. If owners do not comply with proper use of the mailbox, their CMA Mailbox assignment may be rescinded by the Board, and they will need to make other arrangements with USPS for mail delivery. Mailbox Fees will not be refunded if access is terminated for cause.

Mailbox Fees

A. Since not all CMA owners own/use a mailbox, the cost of installing the boxes is reimbursed by the one-time fee to owners when a mailbox is assigned to a property.
B. The Mailbox Fee is based on the cost to install a new 16-box unit.
   1. When a new unit is required, CMA purchases and installs the unit.
   2. The total cost of installation is then divided by 16 (number of boxes) and rounded up to the next whole dollar. That amount then becomes the one-time fee charged to owners who are assigned a mailbox (whether in that unit, or a mailbox in any previous unit that has been vacated).

      For example, the 2026 cost of a new unit is $2,565. The cost of bolts to secure it to the concrete pad and to drill holes for the bolts is approximately $60. The total cost is $2,625. Divided by 16 and rounded up, would be $165. Therefore, the new cost charged for any assigned mailboxes would be $165, until the next new unit is required.

C. Mailbox Fees are Miscellaneous Income in the general operating budget and will offset the expenses of installation and maintenance of the Mail Center.

Specifications

A. Mailbox units are Salisbury Industries Model 3316BRZ-U (bronze).
B. Mailbox units are installed on the concrete pad using four (4) stainless steel concrete expansion bolts.
C. The pad will accommodate up to eight (8) mailbox units, or 128 mailboxes.
D. There are currently (2026) five (5) mailbox units installed.
E. The central parcel locker was provided by the Berkeley Springs Post Office. There is space for a second locker, if needed. If an additional locker is required, CMA will install it in cooperation with the Berkeley Springs Post Office.

677

Policy Amendments

This Policy may be amended by a majority vote of the Board of Directors. There is no requirement to amend this Policy for annual increases in mailbox unit installation cost, lock replacement cost, or Mailbox Fee calculation.

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678

COOLFONT MOUNTAINSIDE ASSOCIATION MAILBOX USE POLICY RESOLUTION 2026-01 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: May 4, 2026

Motion by: *Valerie Creason* Seconded by: Nancy Lidard

VOTE:

	YES	NO	ABSTAIN	ABSENT
Norm Rosenberg, President	X			
Stephen Crane, Vice President	X			
Valerie Creason, Secretary	X			
Jaron Ervin, Treasurer	X			
Dave Creason, Director	X			
Evelyn Israel, Director				X
Nancy Lidard, Director	X			

ATTEST:

Secretary

5/5/26
Date

Resolution effective date: May 5, 2026

County Clerk's Office
Morgan County, West Virginia MAY 26 2026
The foregoing writing, was this day presented in said office and thereupon admitted to record, at 3:22. Testes Kimberly Nicklas Clerk